



POLICE DEPARTMENT

September 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302306 (Incident Date: March 16, 2023) regarding Police Officer Arthur Cenci, Tax No. 943069 (DADS No. 2024-31123)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202302306, pertaining to Police Officer Arthur Cenci. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Cenci would be detrimental to the Police Department's disciplinary process.

In this case, Police Officer Cenci assisted a fellow officer by helping handcuff an irate individual and assisted in restraining him for EMS to be able to transport him for psychological evaluation properly. As Police Officer Cenci approached, he observed that the individual's cellphone was still actively recording the interaction. Police Officer Cenci shut off the recording and explained that he did so to ensure the individual's cellphone would not be damaged and adequately secured. Additionally, Police Officer Cenci stopped the individual's cellphone from recording because the individual was about to be transported to a hospital where video recording is prohibited due to privacy concerns. Thus, based on the circumstances, Police Officer Cenci acted appropriately when he removed the individual's cellphone and stopped the cellphone's recording.

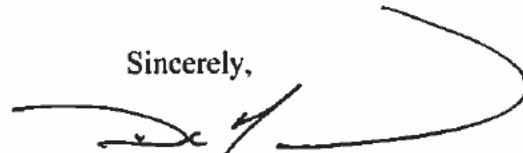
Officer Cenci has been employed for 17 years, has no prior substantiated CCRB cases, and has no formal disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police

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Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation that he interfered with the complainant's use of a recording device. Additionally, the Police Commissioner intends to issue Police Officer Cenci a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for failing to provide his name to the complainant.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is stylized with a large, sweeping loop on the right side and a horizontal line extending to the left.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202302306 (Incident Date: March 16, 2023) regarding Police Officer Arthur Cenci, Tax No. 943069 (DADS No. 2024-31123)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 6, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against PO Cenci would be detrimental to the Police Department's disciplinary process. Consequently, you concluded you would retain jurisdiction and direct the issuance of a Schedule "A" Command Discipline and the forfeiture of one (1) vacation day to PO Cenci for his failure to provide his name to the complainant.

We disagree with your determination that PO Cenci's interference with the complainant's cellphone, to wit, manipulating the device to cease its recording, did not constitute misconduct. In the present case, the complainant specifically sought to lawfully record law enforcement activity, an act protected by applicable local, state and federal law. PO Cenci's actions, however purportedly well-intentioned, frustrated that purpose. The suggestion that PO Cenci wished to safeguard the complainant's property or protect hospital patient privacy is belied by the fact that merely returning the phone to the complainant's pocket, without turning it off, would have achieved the same aims.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against PO Cenci to continue and allow the Charges and Specifications to be served upon PO Cenci.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202302306 (Incident Date: March 16, 2023) regarding Police Officer Arthur Cenci, Tax No. 943069 (DADS No. 2024-31123)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Arthur Cenci. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Cenci for the reasons expressed in my September 6, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the allegation that Police Officer Cenci failed to provide his name to the complainant. Furthermore, the Police Commissioner directs that no disciplinary action be imposed for the allegation that he interfered with the recording device.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office